



THE WHITE NILE AND SUDD CENTRE

Water is Life

JUBILANT CONGRATULATORY MESSAGE

TO

H.E. SALVA KIIR MAYARDIT, PRESIDENT OF THE REPUBLIC

FOR

SIGNING ACCESSION INSTRUMENT TO THE NILE BASIN COOPERATIVE FRAMEWORK AGREEMENT

August 10, 2024

Juba, South Sudan

It is with great jubilation and historic appreciation that the Board of Trustees (BOT), members, and experts of the White Nile and Sudd Center (WNSC), South Sudan water resources management thinktank, are coming together today to send this special congratulatory message to H.E. Salva Kiir Mayardit, President of the Republic of South Sudan, for unwaveringly signing the instrument of accession to the Nile Basin Cooperative Framework Agreement (CFA) in Juba on 6 August 2024 and instructing the Ministry of Foreign Affairs and International Cooperation (MFA&IC) to immediately deposit it with the African Union (AU) as required by Article 42. The presidential signature occurred after the Transitional National Legislative Assembly (TNLA) unanimously ratified the CFA on Monday, July 8, 2024, calling it a gift to the people of South Sudan on the eve of the 13th anniversary of independence.

Established under the Nile Basin Initiative (NBI) that was launched on February 22, 1999, by the riparian states, the CFA is modelled like the Convention on the Law of the Non-navigational Uses of International Watercourses, adopted in 1997 which entered into force in 2014. Only four Nile Basin countries (Ethiopia, Tanzania, Uganda and Rwanda) signed the CFA on May 14, 2010, and were joined later by Kenya and Burundi, leading to realization of the required number of six countries as per Article 43, after which the process of ratification started in June 2013. Now with the Republic of South Sudan having exercised its sovereignty to accede to this important agreement after seceding from the Sudan on July 9, 2011 and getting admitted into the NBI on July 5, 2012, the CFA is destined to enter into force in two-months time as per Article 45, starting from August 2024. The republic of South Sudan makes the sixth member state after Ethiopia, Rwanda, Tanzania, Uganda and Burundi that have ratified or acceded to the CFA. Parties to the Agreement will now embark on the establishment of the Nile River Basin Commission (NRBC) to succeed NBI.

We are overjoyed by this long-awaited positive development as it fulfills one of our key recommendations in the Urgent Memo on “**Preservation, Management and Development of Water Resources and Wetlands of South Sudan**”, which we wrote to His Excellency, the President of the Republic of South Sudan, on July 25, 2022 recommending speeding up of ratification of the CFA to help in addressing legal and political problems associated with the Nile basin dredging in the territory of South Sudan.

The WNSC upholds the spirit of the CFA as expressed in its Preamble regarding harmonious utilization, conservation, and protection of this essential natural resource for the benefit of present and future generations. We stand ready to assist the Government of South Sudan to get prepared in selecting and sending well-experienced nominees across the entire water sector institutions through the Ministry of Water Resources and Irrigation, the National Nile Focal Point Institution to NRBC in Entebbe per Part III of the CFA. The appointed experts into NRBC, will ensure among others, participation in Fact-finding Commission and search for solutions to the Article 14(b) Nile River security, uses and rights as well as drafting and negotiation of related protocols. Oh God Bless South Sudan!

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